

SENATE No. 1579

The Commonwealth of Massachusetts

PRESENTED BY:

Liz Miranda

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to eliminate barriers and expand abortion access.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Liz Miranda</i>	<i>Second Suffolk</i>	
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>3/18/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/26/2025</i>
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	<i>3/31/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>3/31/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/1/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>5/15/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>6/4/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/12/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>1/21/2026</i>

SENATE No. 1579

By Ms. Miranda, a petition (accompanied by bill, Senate, No. 1579) of Liz Miranda and Manny Cruz for legislation to eliminate barriers and expand abortion access for patients under the age of 16. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to eliminate barriers and expand abortion access.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 112, as so appearing, is hereby amended in section 12K by adding
2 the following definitions:-

3 “Abortion-related care”, a medically appropriate service complementary to the
4 performance of an abortion.

5 “Provider”, a licensed health care professional who, acting within their scope of practice,
6 may lawfully perform an abortion or provide abortion-related care.

7 “Provider facility”, a structure in which a provider performs abortions or provides
8 abortion-related care.

9 SECTION 2. Chapter 112, as so appearing, is hereby further amended by striking out
10 section 12R and inserting in place thereof the following sections:

11 An abortion shall not be performed without first obtaining the written informed consent
12 of the patient seeking an abortion. The commissioner of public health shall prescribe a form to
13 use in obtaining such consent. A patient seeking an abortion shall sign the consent form in
14 advance of the time for which the abortion is scheduled, except in an emergency requiring
15 immediate action; provided, however, that this requirement shall not impose any waiting period
16 between the signing of the consent form and the patient obtaining the abortion. The patient shall
17 then return it to the physician, physician assistant, nurse practitioner or nurse midwife
18 performing the abortion who shall maintain it in their files and who shall destroy it 7 years after
19 the date upon which the abortion is performed.

20 The consent form and any other forms, transcript of evidence or written findings or
21 conclusions of a court shall be confidential and shall not be released to any other person except
22 by the patient's written informed consent or by a proper judicial order, other than to the patient
23 themselves, to whom such documents relate, the physician, physician assistant, nurse practitioner
24 or nurse midwife who performed the abortion or any person whose consent is obtained pursuant
25 to this section or under any other applicable state or federal law.

26 SECTION 3. The second paragraph (2) of section 12F of chapter 112 of the General
27 Laws, is hereby amended by striking out the words "his medical or dental care" after the words
28 "Any minor may give consent to" and by inserting the words "their medical care, including
29 abortion, or dental care"

30 SECTION 4. The third paragraph (3) of section 12F of chapter 112 of the General Laws,
31 is hereby amended by striking out the word "abortion or".